City of San Mateo
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City Attorney's Impartial Analysis of Measure __

The San Mateo City Charter defines the organization, powers, functions and procedures for City government. Changes to the Charter must be approved by a majority of City voters. The City Council has placed the following Charter amendments on the ballot:

- ***Updates to Reflect Current District Election Process***. The Charter currently states that Councilmembers are elected by the voters at large. However, the Council adopted an ordinance in 2021 converting to district elections in order to comply with the California Voting Rights Act. The City held by-district elections in 2022 and 2024. The proposal would change the Charter to reflect our current election system, in which voters in each district chose their Councilmember who must reside within the district.

  The proposal would also provide for district boundaries to be redrawn following the federal census that is produced every ten years, consistent with federal and state law. Language allowing candidates to run for more than one vacant seat would also be removed in light of the change to district elections.

- ***Removal of Outdated Section Affecting Councilmembers Elected in 2015 and 2017***. Prior Charter amendments changed City elections to even-numbered years in response to state law, and extended the terms of Councilmembers elected in 2015 and 2017 by one year. The terms of those Councilmembers last ended in 2022. The prior amendments would therefore be removed as outdated. Councilmembers would continue to be elected to four-year terms in even-numbered years.

- ***Extension of Time to Fill Council Vacancies***. The proposal would extend the period of time that the City has to fill a vacancy on the Council from 30 days to 60 days.

- ***Extension of Time Before Forfeiture of Council Office for Absence from the City***. The Charter states that a Councilmember shall forfeit their office if absent from the City continuously for more than 30 days without permission from a majority of the remaining Councilmembers. The proposal would extend this period to 60 days.

- ***Council Meeting Schedule***. The proposal would remove language specifying the day and time for regular Council meetings and would allow the Council to do so instead by resolution.

- ***Publication and Expiration of Emergency (Urgency) Ordinances***. The measure would allow a summary of emergency ordinances to be published instead of the full text, and would remove language that repeals emergency ordinances as of the 91st day following adoption.

- ***Removal of Candidate Statement Requirement***. The proposal would remove the requirement for a detailed candidate statement with specified background information to be submitted to the City Clerk.
- ***Selection of Newspaper for Publication of Notices***. The measure would remove language requiring sealed bids by newspapers seeking a contract for publication of legal notices and would remove a requirement to award the contract to the low bidder.
- ***Miscellaneous Revisions***. Other amendments include clarifying the title and appointment process for the Finance Director, and adding gender-neutral wording.

A YES vote approves the measure.

A NO vote rejects the measure.

The above statement is an impartial analysis of Measure __. If you desire a copy of the measure, please call the City Clerk's office at (650) 522-7040 and a copy will be mailed at no cost to you.

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